Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1294
Claimant:	Donna Roberts
Adjuster:	Alison Sweeney

July 6, 2024 - Claimant reported a low-speed collision in the parking lot with the insured vehicle while both cars were backing out of adjacent spaces. Claimant states she felt neck and lwoer back discomfort shortly after and sought treatment the same day. Recorded initial statement and photos of both vehicles. Claimant is not represented by counsel.

July 14, 2024 - Reviewed the scene photos. Minor bumper contact on the claimant's rear quarter panel and a scuffed tail light lens. Lot surveillance footage was requested from property management, which indicates the claimant's vehicle was moving at walking pace at impact. Liability appears shared pending the footage.

July 23, 2024 - Claimant provided treatment notes from urgent care reporting a back strain with muscle spasm, prescribed muscle relaxants and physical therapy referral. No fractures or imaging-confirmed injuries noted. Claimant asked about the process for a bodily injury claim and was given the general claim timeline. Adivsed claimant that I cannot provide legal advice regarding her rights.

July 29, 2024 - Spoke with claimant by phone to confirm physical therapy schedule and whether she has missed work. Claimant reports she is still experiencing stiffness when lifting and driving for extended periods. Requested wage documentation and the physical therapy progress report. Reminded claimant she may consult an attorney if she wishes, and that she is free to decline.

August 6, 2024 - Surveillance footage received and reviewed. It shows both vehicles moving slowly and the insured vehicle reversing into the claimant's path. Liability assessment updated to favor the insured at a higher share. Medical file remains open pending physical therapy progress report. Reserve review schedlued for next cycle.

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Recorded Statement

Claim number:	C-1294
Statement of:	Donna Roberts
Taken by:	Alison Sweeney
Date:	July 11, 2024

Q: Thank you for taking the time to give this recorded statement. Can you please state your full name for the record?

A: Sure. I'd rather keep my name off this one, if that's all right. You can just call me the claimant.

Q: That's fine. Can you describe where the collision took place?

A: It was in a shopping center parking lot in Pearland, Texas. I was backing out of a space near the store entrance when another vehicle came down the aisle and clipped the rear quarter panel of my car.

Q: Were you moving when the impact occurred?

A: I was rolling backward slowly, maybe five miles an hour. The other driver was coming through fast, or at least it felt that way to me.

Q: Did you see the other vehicle before the impact?

A: Not until right before. A cart corral was blocking my view on the left side. I heard a horn and then felt the jolt.

Q: Did you feel any injury at the time?

A: Not right away. I got out, looked at the damage, and kept saying I was fine. By that evening my lower back was really tight, and by the next morning I had sharp pain when I bent over. I was diagnosed with a back strain and I've been doing physical therapy since.

Q: Have you been seeing a doctor for this?

A: Yes, my primary care physician referred me to a physical therapist. I've missed about a week of work because of it.

Q: Is there anything else you'd like to add?

A: Just that I was following the parking lot rules and I'm hoping this gets sorted out fairly. I can send over my medical records and the photos I took at the scene.

Q: Thank you. That concludes the statement.